

The costs of proof must also be limited in time as well. Costs of proof can be awarded only for the period after the opposing denied the request for admissions. *Yoon v. CAM IX Trust* (2021) 60 Cal.App.5th 388, 395; see CJER Civ. Pro.—Discovery, § 21.38.

The Tenant's responses were dated February 27, 2023 and verified March 2, 2023. See Supporting Declaration, **Exhibit C**. The claimed fees before the March 3, 2023 time entry total 27.2 hours (\$16,320.00). Excluding those fees, the total claimed fees are \$111,180.00. Any further costs attributable to mediation after that point must also be excluded. The claimed costs relating to the second mediation in April 2024 total 8.6 hours (\$5,160.00). \$111,180.00 less \$5,160.00 equals \$106,020.00.

The Court is familiar with the record at trial, the evidence proffered and the arguments made, including as addressed at length in the Court's Decision after Trial. Having considered those matters and the totality of the evidence before the Court, the Court concludes that at least one-third of the \$106,020.00 in claimed fees constitutes reasonable expenses incurred in proving the matters covered by the denied RFAs and are properly recoverable costs of proof. That amount totals \$35,340.00. This determination is informed by the nature and extent of the evidence received at trial and the Court's familiarity with that evidence.

Having reviewed all of the claimed attorneys' fees and the description of the work to which the claimed fees related (see Supporting Declaration, **Exhibit G**), the Court finds the **\$35,340.00** attorneys' fees to be reasonable, including in light of the legal services rendered and the nature and scope of the issues in the case. The trial court has broad authority to determine the amount of a reasonable fee. *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1329.

The Court further finds that the **\$7,014.71** in claimed costs were reasonable and necessary to the conduct of the litigation. No motion to tax or strike any of the costs was made by the Tenant and no specific objections have been made as to any particular cost item in the opposition papers to the pending motion.

Disposition

The Court finds and orders as follows:

1. The Motion for Attorney's Fees is GRANTED.
2. The Landlord is awarded and shall recover from Tenant attorneys' fees in the sum of **\$35,340.00**.
3. The Landlord is awarded and shall recover from Tenant costs of suit in the sum of **\$7,014.71**.
4. The Court will issue the order after hearing.

16. 9:00 AM CASE NUMBER: L25-05639
CASE NAME: OPORTUN, INC VS. KAROL PEREZ MORA
HEARING IN RE: MOTION TO SET ASIDE DEFAULT JUDGMENT
FILED BY:

TENTATIVE RULING:

Defendant Karol Perez Mora ("Defendant") filed a Motion to Set Aside Default and Default Judgment on February 10, 2026 ("Motion to Set Aside Default"). The Motion to Set Aside Default was set for hearing on June 22, 2026.

Background

Plaintiff Oportun, Inc (“Plaintiff”) filed its Complaint on May 22, 2025.

A Proof of Service of Summons was filed September 17, 2025 (the “9/17/25 POSS”). The 9/17/25 POSS reflects service on Defendant by substitute service on “Jose Salazar, CO-RESIDENT” on August 28, 2025, at 12:45 pm, at “2761 GRANT ST APT 35, CONCORD, CA 94520.” 9/17/25 POSS, ¶¶3-5. The service was done by a registered process server. *Id.* at ¶7.

A default was entered against Defendant on November 10, 2025 (the “Default”). Thereafter, a request for entry of a default judgment was submitted to the Court. A default judgment was entered on December 23, 2025 (the “Default Judgment”).

Shortly thereafter, in February 2026, Defendant filed the Motion to Set Aside Default. The motion is supported by Defendant’s Declaration filed February 10, 2026 (the “Supporting Declaration”).

A Proof of Service was filed February 10, 2026 reflecting service of the Motion to Set Aside Default on Plaintiff’s counsel. The Court notes, however, that the service date was February 6, 2026. This indicates to the Court that the copy served would not have had the hearing date and time on the caption, as was written in by the clerk of the Court at the time of filing on or about February 10, 2026.

No opposition has been filed.

Analysis

1. Defendant Demonstrates That Service Was Defective.

Defendant argues that the service was defective.

The service was done by a registered process server. 9/17/25 POSS, ¶7. This raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

The Court find that the proffered evidence rebuts that presumption.

Defendant indicates that she does not live with anyone named “Jose Salazar” and did not learn of this lawsuit until the week of January 6, 2026 when she received documents in the mail from the Court. See Supporting Declaration, ¶¶3-6. She contends that she only lives with her husband who is 46 years old (as opposed to the person sub-served who is described as being 30 years old). *Id.* at ¶7; and *c.f.* 9/17/25 POSS, ¶15.b.

2. The Default And Entry Of Judgment Thereon Are Void.

The Court has authority to vacate a void judgment pursuant to Code of Civil Procedure section 473(d). See Code Civ. Proc. § 473(d) (“The court ... may, on motion of either party after notice to the other party, set aside any void judgment or order.”); see also *Sindler v. Brennan* (2003) 105 Cal.App.4th 1350, 1353 [a judgment void on its face because rendered when the court lacked personal or subject matter jurisdiction or exceeded its jurisdiction in granting relief which the court had no power to grant is subject to collateral attack at any time and may be set aside under Code of Civil Procedure section 473, subdivision (d)].

In light of the Court’s finding that service was defective, as addressed above, the Court concludes that the Default and the Default Judgment entered thereon are void.

3. Defendant Did Not Have Actual Notice Of The Pending Lawsuit.

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Independent of the validity of the service, Defendant has demonstrated a lack of actual notice in time to defend the action which was not caused by Defendant’s avoidance of service or inexcusable neglect.

4. Mistake, Inadvertence, Surprise, Or Excusable Neglect.

Under Code of Civil Procedure section 473(b), the Court may, in its discretion, relieve a party from a default judgment resulting from “his or her mistake, inadvertence, surprise, or excusable neglect.” Code Civ. Proc., § 473(b); *Rivercourt Co. Ltd. v. Dyna-Tel, Inc.* (1996) 41 Cal.App.4th 1477, 1480 (“*Rivercourt*”). A motion seeking relief under section 473 is addressed to the sound discretion of the trial court. *Rivercourt, supra*, 41 Cal.App.4th at 1480. Neither mistake, inadvertence, nor neglect will warrant relief unless upon consideration of all of the evidence it is found to be excusable. *Conway v. Municipal Court* (1980) 107 Cal.App.3d 1009, 1017. The party seeking relief under section 473(b) bears the burden of establishing that the mistake, inadvertence, surprise or neglect was excusable. *Id.*

The Court need not consider this separate ground for relief in light of the findings above.

Disposition

The Court finds and orders as follows:

1. For the reasons set forth above, the Court is inclined to grant the Motion to Set Aside Default. However, it appears that Plaintiff may not have received proper notice of the hearing date and time.
2. In the exercise of its discretion, the Court *sua sponte* continues this matter to **July 13, 2026**, at **9:00 am**, in **Department 34**. The Clerk is directed to serve all parties with this order, with notice of the continued hearing date and time.
3. The parties are ordered to meet and confer regarding the relief sought by the motion in light of the Court’s expressed tentative ruling. If resolved through such meet and confer efforts, the parties may file a stipulation to set aside the Default and Default Judgment and for Defendant to file a responsive pleading within ten (10) days of notice of entry of any order approving such stipulation.

17. 9:00 AM CASE NUMBER: N23-0180
CASE NAME: THOMAS BUTT VS. EDUARDO MARTINEZ
***HEARING ON MOTION IN RE: TAX OR STRIKE COSTS**
FILED BY: BUTT, THOMAS
TENTATIVE RULING:

Petitioner and plaintiff Thomas Butt (“Petitioner”) filed a Motion to Strike or Tax Costs on February 9, 2026 (the “Motion to Tax Costs”). The Motion to Tax Costs was set for hearing on June 22, 2026.

Background

A judgment was entered on January 20, 2026 (the “Judgment”). The Judgment determined that